

United States Space Force
NON-DISCLOSURE AGREEMENT

I, _____, an individual official, employee, consultant, or subcontractor of _____ intending to be legally bound, consent to the terms in this agreement in consideration of being granted access to Government-sensitive information, discussions, or data associated with USSF acquisition programs and activities, as specified below. For purposes of this Agreement, "Information" includes any non-public technical, operational, programmatic, or business information related to USSF efforts, regardless of form or format.

Signer acknowledges the category or categories of information that they may have access to, and the signer's willingness to comply with the standards for protection, by placing their initials in front of the applicable category or categories below:

Initials:	Information Categories:
_____	Controlled Unclassified Information (CUI)

I attest that I am familiar, and will comply, with the standards for accessing, disseminating, handling, and safeguarding the information to which I am granted access as cited in this agreement and in accordance with law, regulation, or Government-wide policy, and with the guidance provided to me by the USSF relative to the category of information.

I understand and agree to the following conditions for access to the information indicated above:

1. Non-disclosure: I agree to not disclose any information to which I am granted access to anyone who, or anything that, is not granted such access pursuant to an applicable lawful Government purpose. I understand my responsibilities to protect and not disclose such information except for, and to people with, an appropriate lawful Government purpose. To ascertain whether someone or something is authorized access, pursuant to an applicable lawful Government purpose, to information that is under my control or in my possession, I will do so according to Space Rapid Capabilities Office guidance and applicable law, regulation, or Government-wide policy.
2. Scope: I understand that the information to which I am granted access includes any information I create or use on behalf of or for the Government, information I receive

from the Government to maintain, handle, transmit, or use (for research, in derivative documents, etc.), or information originating from another source (such as information generated for the Government by a contractor or research entity).

3. Training: I acknowledge that I have undergone training concerning the nature and protection of the information to which I have been provided access, including procedures to follow in ascertaining whether other people to whom I contemplate disclosing this information are approved to access it pursuant to an appropriate lawful Government purpose, and that I understand this training and these procedures.
4. Security/control: I am obligated to protect information to which I am granted access from unauthorized disclosure, in accordance with the terms of this agreement, USSF guidance, and the law, regulation, or Government-wide policy applicable to the specific categories of information to which I am granted access.
5. Reporting breaches: I agree that I shall promptly report to appropriate officials, in accordance with the guidance issued for the applicable category of information, any unauthorized disclosure that I have knowledge of whether or not I am personally involved. I also understand that my anonymity will be preserved to the extent possible when reporting such violations.
6. Time: I understand that all conditions and obligations imposed upon me by this agreement apply during the time I am granted access to information, and at all times thereafter while such information remains controlled. These conditions and obligations may no longer apply if I am explicitly released in writing by an authorized representative of the USSF or the United States Government.
7. Breach: If I violate the terms and conditions of this agreement, such violation may result in cancellation of my access to information, and, depending upon the law, regulation, or Government-wide policy that governs the information, may result in civil and criminal sanctions. This may also serve as a basis for denying me access to other types of information under USSF control.
8. Assignee: I assign to the United States Government all royalties, remunerations, and emoluments that have resulted, will result, or may result from any disclosure, publication, or revelation of information to which I am granted access that is inconsistent with the terms of this agreement.
9. Remedies: This agreement is made and intended for the benefit of the United States Government and may be enforced by the United States Government or the authorized non-Federal entity. By granting me access to information in this context, the United States Government may seek any remedy available to it to enforce this agreement, including, but not limited to, application for a court order prohibiting disclosure of information in breach of this agreement. I understand that if I violate the terms and conditions of this agreement, I could be subjected to administrative, disciplinary, civil, or criminal action, as appropriate, under the law, regulation, or Government-wide policy applicable to the category of information involved, and neither the United States Government nor the non-Federal authorized entity have waived any statutory or common law evidentiary privileges or protections that they may assert in any administrative or court proceeding to protect any information to which I have been given access under the terms of this agreement.
10. Severability: Each provision of this agreement is severable. If a court should find any provision of this agreement to be unenforceable, all other provisions shall remain in full force and effect.

11. Other agreements: My execution of this agreement shall not nullify or affect in any manner any other secrecy or non-disclosure agreement(s) that I have executed or may execute with the USSF, the United States Government, or any of its other departments or agencies.
12. Federal Employee Whistleblower Rights: These provisions are consistent with and do not supersede, conflict with, or otherwise alter the employee obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General of a violation of any law, rule, or regulation, or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by controlling Executive orders and statutory provisions are incorporated into this agreement and are controlling.
13. Signing this agreement does not bar disclosures as required by superseding authorities of existing or future law, regulation, or Government-wide policy.
14. I read this agreement carefully and my questions, if any, were answered. I acknowledge that the USSF has made available to me any agency guidance, law, regulation, or Government-wide policy, or other laws, regulations, or directives referenced in this agreement so that I may read them at this time, if I so choose.

Acknowledgement

Typed/Printed Name:	Date:

I make this agreement in good faith, without mental reservation or purpose of evasion.

Signature:

GOVERNMENT ACCEPTANCE:

Typed/Printed Name: Lee Mutschler, Contracting Officer	Date:

Signature:
